

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES
ASSOCIATION and CITADEL
SECURITIES LLC,

Petitioners,

v.

UNITED STATES SECURITIES AND
EXCHANGE COMMISSION,

Respondent.

No. 23-13396

**JOINT MOTION TO SET BRIEFING SCHEDULE WITH
EXTENSIONS OF CERTAIN DEADLINES**

Pursuant to 11th Cir. R. 27-1, 31-1, and 31-2, Petitioners American Securities Association and Citadel Securities LLC, and Respondent United States Securities and Exchange Commission respectfully move this Court to set a briefing schedule that includes three extensions of certain deadlines in the above-captioned matter.

This case is a challenge to the Securities and Exchange Commission's final order in *Joint Industry Plan; Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail*, Release No. 34-98290; File No. 4-698, entered September 6, 2023. The parties have

conferred and jointly request that the Court adopt the following schedule: An additional 33 days for Petitioners to file their opening brief (providing 73 days rather than 40); an additional 37 days for Respondent to file its response brief (providing 67 days rather than 30); and an additional nine days for Petitioners to file their reply brief (providing 30 days rather than 21). This schedule will permit the parties and their counsel sufficient time to prepare their filings in this complex case alongside other significant commitments, and granting these modest extensions now will enable the parties to arrange their schedules well in advance.

The parties thus respectfully request that this Court adopt the following briefing schedule:

- Brief of Petitioners: February 8, 2024
- *Amicus* Briefs in support of Petitioners: February 15, 2024
- Brief of Respondent: April 15, 2024
- *Amicus* Briefs in Support of Respondent: April 22, 2024
- Reply Brief of Petitioners: May 15, 2024

Dated: December 5, 2023

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Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that this motion complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(A) because it contains 243 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in 14-point Century Schoolbook Standard (a proportionally spaced typeface) using Microsoft Word.

Dated: December 5, 2023

Respectfully submitted,

/s/ Noel J. Francisco

*Counsel of Record for Petitioner
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CERTIFICATE OF ELECTRONIC SUBMISSION

I certify that: (1) any required privacy redactions have been made; (2) the electronic submission of this document is an exact copy of any corresponding paper document; and (3) the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free from viruses.

Dated: December 5, 2023

Respectfully submitted,

/s/ Noel J. Francisco

*Counsel of Record for Petitioner
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CERTIFICATE OF SERVICE

I certify that on December 5, 2023, the foregoing Motion was electronically filed with the United States Court of Appeals for the Eleventh Circuit using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

Dated: December 5, 2023

Respectfully submitted,

/s/ Noel J. Francisco

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